

26STCP01668 26STCP01668

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-09

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Case Number: 26STCP01668 Hearing Date: September 9, 2026 Dept: 833

Dustin Courtney

Case No. 26STCP01668

Hearing:

September 9, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

City

of Los Angeles Judge:

Joseph Lipner

[Tentative] Order Denying

Leave to File Suit Under Section 946.6

Petitioner Dustin Courtney ("Petitioner") petitions the Court for leave under Government Code section 946.6 to file suit against the City of Los Angeles ("City").

The Court DENIES leave to file a late claim.

BACKGROUND

On May 5, 2025, Petitioner was involved in a collision with a City of Los Angeles vehicle while riding his e-bike near Brand Park in Los Angeles, California. (Courtney Decl., ¶ 2.) Petitioner suffered serious injuries, including neck and knee injuries and underwent surgery. (Ibid.)

At the time of the incident, Petitioner had limited information regarding the ownership and control of the vehicle involved. (Id., ¶ 3.) Petitioner's previous counsel believed the County of Los Angeles was the responsible public entity. (Id., ¶ 4.)

A claim was presented to the County of Los Angeles on or about July 5, 2025. (Id., ¶ 5.) On July 31, 2025, the County rejected the claim. (Id., ¶ 8.)

On December 20, 2025, the County informed Petitioner that the vehicle involved in the collision was not owned or controlled by the County of Los Angeles. (Id., ¶ 10.) After learning that information, counsel for Petitioner determined that the city of Los Angeles was the correct public entity. (Id., ¶ 11.)

On December 22, 2025, Petitioner submitted a claim to the City. (Id., ¶ 12.)

On January 7, 2026, the City returned the claim as untimely, and advised that the remedy was to apply for leave to present a late claim. (Id., ¶ 13.)

On January 27, 2026, Petitioner's prior counsel submitted an Application for Leave to Present Late Claim to the City of Los Angeles. (Id., ¶ 14.)

The City denied the late claim application. (Id., ¶ 15.)

LEGAL STANDARD

Government Code § 945.4 prevents a party from bringing suit for money or damages against a public entity unless a timely claim has first been presented and acted upon.

Government Code § 946.6 allows a party to seek leave to bring a suit for money or damages even if the party has not submitted a timely claim. A party seeking leave must show (1) that application was made to the board under Section 911.4 and was denied or deemed denied; and (2) the reason for failure to present the claim within the six-month time limit specified in Section 911.2. (Gov. Code § 946.6, subd. (b).)

A party seeking leave must also provide (1) the name and post office address of the claimant; (2) the post office address to which the person presenting the claim desires notices to be sent; (3) the date, place, and other circumstances of the occurrence or transaction which gave rise to the claim asserted; (4) a general description of the indebtedness, obligation, injury, damage, or loss incurred so far as it may be known at the time of presentation of the claim; (5) the name or names of the public employee or employees causing the injury, damage, or loss, if known; and (6) the amount claimed if it total is less than ten thousand dollars as of the date of presentation of the claim. (Gov. Code § 946.6, subd. (b)(3); Gov. Code § 910.)

The court must relieve the petitioner from the filing of a timely claim if the court finds that the application to the board was made within a reasonable time and was denied or deemed denied and the person who sustained the injury was physically or mentally incapacitated, which prevented the timely filing of a claim. (Gov. Code §§ 946.6, subd. (c)(4) and (c)(5).)

While there is a policy of granting relief under Section 946.6, that policy “cannot be applied indiscriminately to render statutory time limits ineffective.” (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1382.)

DISCUSSION

Section 946.6, subd. (c) requires the Petitioner to show that the failure to present a claim was a result of excusable neglect. “The mere recital of mistake, in advertence, surprise, or excusable neglect is not sufficient to warrant relief.” (*Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation* (2006) 135 Cal.App.4th 903, 909-910.) “A person seeking relief [under the theory of excusable neglect] must show more than just a failure to discover a fact until too late; or a simple failure to act. He must

show by a preponderance of the evidence that in the use of reasonable diligence, he could not discover the fact or could not act upon it.” (Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1296.)
“A [f]ailure to discover the alleged basis of the cause of action in time is not a compelling showing in the absence of reasonable diligence exercised for the purpose of discovering the facts.” (Harrison v. County of Del Norte (1985) 168 Cal.App.3d 1, 7.)

Petitioner

does not introduce any admissible evidence to show that in the use of reasonable diligence, he could not discover that the City owned the vehicle prior to December 2025. There is nothing in the declaration from Petitioner or Petitioner’s counsel that indicates that counsel could not identify the governmental owner of a particular license plate.

Contrary

to what Petitioner espouses in his reply, it is not the City’s burden to be providing a declaration showing that Petitioner’s counsel could have found prior to December 2025. As the statement of law above makes clear, it is Petitioner’s burden to show that prior to December 2025, counsel could not have discovered that the City owned the vehicle. The precedent from Harrison suggests that Petitioner must show that he attempted to discover the facts.

Conclusory

statements like “I intended to pursue the responsible public entity and relied on the investigation and claim handling being conducted on my behalf” or “Once it became clear that the County was not the responsible entity, the claim process against the City was promptly pursued” are not sufficient. (Courtney Decl., ¶¶ 16-17.) The Court will not characterize neglect as excusable when the attorney has not described what the neglect was or what specifically they did to investigate and pursue the claim.. (Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 66; Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1293.)

Therefore,

Petitioner has not met his burden to show excusable neglect under Section 946.6, subd. (c).

CONCLUSION

The Court DENIES leave to file a late claim
under Government Code Section 946.6.

IT IS SO ORDERED.

Dated: September
9, 2026

Joseph
Lipner

Superior
Court Judge